

24STCV23093 24STCV23093

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-06-25

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Case Number: 24STCV23093 Hearing Date: June 25, 2026 Dept: 414

24STCV23093

FN-OSM, Inc. v. Laby Property Group, LLC

Thursday,

June 25, 2026

[TENTATIVE]

ORDER CONTINUING THE DEMURRER OF CROSS-DEFENDANT, FN-OSM, INC., TO THE CROSS-COMPLAINT (0365)

The first amended complaint

alleges Plaintiff was required to terminate a lease after water intruded into the premises causing damage to Plaintiff's business. Plaintiff alleges one cause of action for breach of contract.

The Cross-Complaint alleges claims

for (1) apportionment of fault, (2) indemnification, (3) declaratory relief, and (4) breach of contract.

Cross-Defendant demurs to the first,

second, and third causes of action on grounds of uncertainty and failure to state a cause of action. Cross-Complainant argues the demurrer is procedurally defective, and Cross-Defendant did not meet and confer as required by statute. There is no ambiguity.

As of June 23, 2026,

Cross-Defendant did not file a reply brief.

The demurring party is required to meet and confer by telephone or in person to determine whether the purported defects in the pleading can be resolved. (Code Civ. Proc., § 430.41 (a). Demurring party is required to file a declaration stating that the parties met and conferred, and the parties did not reach an agreement; or that the opposing party failed to respond to efforts to meet and confer. (Code Civ. Proc., § 430.41 subd. (a)(3).)

The demurrer is not accompanied by Cross-Defendant's declaration describing the parties' efforts to meet and confer. Accordingly, the court continues the hearing to July 16, 2026, at 9:00 a.m. in Department 414 of the Stanley Mosk Courthouse. Cross-Defendant is ordered to file the required declaration 10 court days before the hearing,